

FIRST ADDENDUM TO LEASE AGREEMENT

This First Addendum To Lease Agreement (the “**Addendum**”) is entered into as of the dates set forth below, but effective for all purposes as of March 1, 2020 by and between **BELLE REALTY OF LAFAYETTE, L.L.C.**, a Louisiana limited liability company (the “**Lessor**”), and **THUY T. NGUYEN**, an individual of the full age of majority domiciled in Lafayette, Louisiana (the “**Lessee**”).

RECITALS

WHEREAS, the Lessor and the Lessee entered into a Lease Agreement effective March 1, 2017, which provided for a thirty-six (36) month term (the “**Lease Agreement**”); and

WHEREAS, the term of the Lease Agreement expires on February 29, 2020; and

WHEREAS, the Lease Agreement contains an Option to Renew for one (1) additional thirty-six (36) month term, and the Lessee desires to exercise the Option to Renew; and

WHEREAS, Lessor and Lessee wish to amend the Lease Agreement to provide for the renewal of the Lease Agreement and to address certain other issues.

AGREEMENT

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. All capitalized terms used herein and not otherwise specifically defined herein shall have the meanings ascribed to those terms in the Lease Agreement.
2. In accordance with Section 31.01 of the Lease Agreement, the Lessee hereby exercises the Option to Renew, and desires to renew the Lease Agreement for a period of thirty-six (36) months beginning March 1, 2020 and expiring February 28, 2023 (the “**Renewal Term**”).
3. Section 4.01(A) of the Lease Agreement is hereby amended to state that the Base Rent during the Renewal Term shall be \$14.00 per square foot per year, payable monthly (\$2,063.83).
4. In light of increasing taxes and insurance costs, Section 4.01(B) of the Lease Agreement is hereby amended to read as follows:

B. Additional Rent. During the Renewal Term, the Lessee shall pay to the Lessor, as additional rent (“Additional Rent”), the following amounts:

1. Common Area Maintenance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion (as hereinafter defined) of the Common Area (as hereinafter defined) maintenance charges ("Common Area Maintenance Charges"). The Common Area Maintenance Charge shall mean the aggregate of all costs and expenses payable by Lessor in connection with the operation and maintenance of the Common Area in the Boulevard Shopping Center Property, including but not limited to landscaping costs, parking area maintenance costs (including repairing, resurfacing, cleaning and striping), utility costs (including water, sewer, electricity and gas), security system costs, life and safety systems costs, electronic monitoring system costs, compensation (including employment taxes and benefits) of all persons who perform duties connected with the operation and maintenance of the Common Area and any other reasonable costs incurred by the Lessor with respect to the Common Area and not otherwise reimbursed by the Lessee hereunder. Common Area shall mean all areas, space, equipment and special services provided by the Lessor for the common or joint use and benefit of the Lessee and other tenants, their employees, agents, servants, suppliers, customers and other invitees, including but not limited to retaining walls, fences, landscaped areas, parking areas, curbs, driveways, sidewalks, private roads, green spaces, landscape areas, patios, service areas and all common areas and other areas all as shown on the site plan attached hereto as **Schedule B**.
2. Tax and Insurance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion (as hereinafter defined) of the annual charges incurred by the Lessor for taxes and insurance coverage for the Boulevard Shopping Center Property ("Taxes and Insurance Charges"). Tax charges shall include all real property taxes, personal property taxes, improvement bonds and other charges or assessments which are levied upon or with respect to the Boulevard Shopping Center Property, including any increase in such taxes or a reassessment of the value of the Boulevard Shopping Center Property, licenses, fees, or other taxes or fees levied in connection with the Lessor's leasing or rental of the Boulevard Shopping Center Property, but shall not include any federal or state income tax imposed upon the Lessor. Insurance charges shall include the cost of any insurance obtained by the Lessor in connection with the Boulevard Shopping Center Property, including but not limited to fire, casualty and liability insurance policies.
3. Payment of Additional Rent. The Lessee shall pay Common Area Maintenance Charges and the Taxes and Insurance Charges

monthly as Additional Rent. The parties agree that the Lessee's Pro Rata Portion of the Common Area Maintenance Charges for the period beginning March 1, 2020 and ending February 28, 2023, shall be \$2.10 per square foot of the Premises annually, payable monthly as provided herein. The parties further agree that the Lessee's Pro Rata Portion of the Taxes and Insurance Charges for the period beginning March 1, 2020 and ending February 28, 2023, shall be \$1.85 per square foot of the Premises annually, payable monthly as provided herein.

The Total Monthly Rental Payment Amount for the Renewal Term shall be calculated as follows:

Base Rent	\$ 2,063.83
Common Area Maintenance Charges	\$ 309.58
Tax and Insurance Charges	<u>\$ 272.72</u>
Total Monthly Rental Payment	\$ 2,646.13

Notwithstanding anything contained herein to the contrary, beginning in the second year of the Renewal Term, Landlord may, if, in Landlord's discretion, the same is necessary to cover an increase in Common Area Maintenance costs and/or increased Taxes and Insurance charges, increase the amount of the Common Area Maintenance Charges and/or Taxes and Insurance Charges for any calendar year thereafter by providing written notice of the same to the Lessee; provided, however that any such increase shall not exceed the prior calendar year actual Common Area Maintenance Charges and/or Taxes and Insurance Charges by more than five percent (5%).

4. Payment of Rent. The monthly payments of the Base Rent and Additional Rent (collectively, the "Total Monthly Rental Payment") shall be due on the first day of each calendar month.

Except as provided herein, all rental payments are due on the first day of each calendar month. In the event the Lessor does not receive the Total Monthly Rental Payments on or before the fifth day of the calendar month, a late fee in the fixed amount of \$100.00 plus a daily charge beginning on the sixth day of the calendar month in the amount of \$25.00 per day shall be charged and shall be due and payable by the Lessee for each late payment.

All rental payments due hereunder shall be made to the Lessor by mailing or hand delivery to 101 Arnould Boulevard, Lafayette, Louisiana 70506 or such other place as the Lessor shall designate in writing. Notwithstanding the foregoing, Lessor shall have the right to require at any time during the Renewal Term that the Total Monthly Rental Payment and any other payments due to Lessor be paid to Lessor via electronic funds transfer, automatic wire transfer, ACH payment transfer, or other automated electronic payment method for deposit into and credit to a bank account designated in writing by Lessor.

5. Section 11.01 of the Lease Agreement shall be amended to add the following paragraph to the end thereof:

Lessee shall not disconnect the electricity, gas or water at any time during the term of this Agreement or any extension thereof, including in anticipation of the termination of the tenancy created herein. Upon termination of the term of this Agreement or any extension thereof, or in anticipation thereof, Lessee shall give Lessor reasonable written notice of its intent to disconnect electricity, gas, and/or water service. Upon receipt of written notice to disconnect, Lessor may require, in its sole discretion, that Lessee cooperate with Lessor and do all things necessary to allow such utilities to be transferred into Lessor's name prior to disconnection.

6. Section 18.01 of the Lease Agreement is hereby amended to read as follows:

The following events shall be deemed to be events of default by Lessee under this Agreement:

A. Lessee shall be adjudged bankrupt, or shall file a voluntary petition in bankruptcy or make a general assignment for the benefit of Lessee's creditors, or a receiver be appointed for Lessee's property, or if execution be issued against Lessee's interest in this Agreement, or if Lessee's interest in this Agreement shall by operation of law pass to any person other than Lessee; or

B. Lessee shall fail to pay the rental due hereunder or any other amount payable to Lessor hereunder; or

C. Lessee shall fail to conduct business operations on the Premises and/or shall demonstrate other indicia of abandonment in such a manner that results in Lessor's reasonable belief that Lessee has abandoned or vacated the Premises; or

D. Lessee shall fail to perform any requirements of this Agreement, other than a failure described in subsection 18.01(B) or 18.01(C) above, and such failure shall continue for five (5) days after written notice of such failure from Lessor delivered to Lessee.

Upon the occurrence of any one or more of such events of default, at the option of Lessor, (i) this Agreement shall cease and terminate immediately and Lessee shall quit and surrender the Premises to Lessor, or (ii) Lessor may pursue any remedy available to Lessor, whether by law or contract, or in equity, including without limitation the repossession of the Premises by Lessor, in which event Lessee shall be liable for all rent payable through the date of repossession. If this Agreement shall have been terminated by Lessor pursuant to this Section 18.01, Lessor may at any time thereafter resume possession of the Premises by any lawful means, and remove Lessee and Lessee's property therefrom. Time is of the essence with respect to all matters described in this Section 18.01.

7. Schedule D of the Lease Agreement is hereby amended to add the following paragraph:

Lessee's illuminated neon sign(s) shall not shine in any color other than white without the prior written consent of Lessor. Lessee's sign(s), including illuminated neon sign(s), shall not blink or employ any flashing action or moving action without the prior written consent of Lessor.

8. The Lessor and the Lessee hereby agree that the terms and conditions of this Addendum shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants of On The Boulevard Shopping Center. The Lessee acknowledges that the foregoing covenant of confidentiality constitutes a portion of the consideration delivered to the Lessor to induce the Lessor to execute and deliver this Addendum.
9. The remainder of the terms of the Lease Agreement not specifically amended herein by this Addendum shall remain and be in full force and effect.
10. This Addendum may be executed in two or more counterparts each of which when executed and delivered as prescribed shall constitute an original.

[SIGNATURES APPEAR ON THE FOLLOWING PAGE]

THUS DONE AND SIGNED as of the date set forth below, before the undersigned competent witnesses, and effective for all purposes as of March 1, 2020.

WITNESSES:

Printed Name: _____

Printed Name: _____

LESSOR:

**BELLE REALTY OF LAFAYETTE,
L.L.C.,** a Louisiana limited liability
company

By: _____
Adam A. Abdalla,
Authorized Representative
Dated: January ___, 2020

Notary Public
Bar Roll No./Notary ID: _____
My Commission Expires: _____

WITNESSES:

Printed Name: _____

Printed Name: _____

LESSEE:

Thuy T. Nguyen
Dated: January ___, 2020

Notary Public
Bar Roll No./Notary ID: _____
My Commission Expires: _____